

SENATE BILL 265

By Hensley

AN ACT to amend Tennessee Code Annotated, Title 42,
Chapter 3; Title 42, Chapter 4 and Title 55, relative
to airports.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 42, Chapter 4, is amended by adding
the following new section:

(a) As used in this section:

(1) "Airport" means an international airport operated by the authority that
is operational on the effective date of this act; and

(2) "Authority" means a metropolitan airport authority created under this
chapter in a county having a metropolitan form of government with a population
of more than five hundred thousand (500,000), according to the 2020 federal
census or a subsequent federal census.

(b) The airport operated by the authority is hereby designated the "Trump
International Airport." The authority is directed to erect suitable signs or affix suitable
markers designating the airport as the "Trump International Airport" and to take other
appropriate actions to recognize this designation in accordance with this section.

(c)

(1) For purposes of facilitating the change of the name of an airport
identified under subsection (b), the authority shall, as soon as practicable:

(A) If the authority has one (1) or more registered trademarks with
the United States patent and trademark office (USPTO) for purposes of
operating the airport:

(i) Petition the USPTO to amend each trademarked name relating to the airport to "Trump International Airport"; or

(ii) File a statement with the USPTO surrendering or abandoning each trademarked name and subsequently apply to trademark each name relating to the airport as "Trump International Airport";

(B) Upon changing each name of the airport in accordance with subdivision (c)(1)(A):

(i) Revise or amend the name of the airport consistent with subsection (b) in all contracts between the airport or the authority and third parties. If the parties to a contract cannot agree to revise or amend the contract in accordance with subsection (b), the authority or airport shall, upon renewal, termination, or cancellation of the contract, renew or enter into a new contract with references to the airport as "Trump International Airport" in accordance with subsection (b);

(ii) Comply with subsection (b) upon execution of a new contract between the authority or the airport and a third party;

(iii) Revise or amend each registered or trademarked name of the airport with all local, state, and federal departments and agencies in accordance with applicable local, state, and federal laws, rules, and regulations; and

(iv) Revise its by-laws or governing documents consistent with subsection (b).

(2) Notwithstanding subdivision (c)(1), the authority or airport may, during the transition period specified under subdivision (c)(1), conduct the business of operating the airport using any registered or trademarked name of the airport with the designation of "doing business as Trump International Airport" or "d/b/a Trump International Airport."

SECTION 2. For purposes of amending by-laws or governing documents and carrying out administrative duties necessary to effectuate this act, this act takes effect upon becoming a law, the public welfare requiring it. For all other purposes, this act takes effect January 1, 2026, the public welfare requiring it.